



CHAPTER 59

An Act to vest in the Minister of Works certain underground works constructed in London during the recent war as air-raid shelters, together with other works connected therewith and land adjacent to those works; and for purposes connected with the matter aforesaid.
[2nd August, 1956]

WHEREAS during the recent war there were constructed by the London Passenger Transport Board, on behalf of the Crown in the exercise of emergency powers, and as part of the arrangements made by His late Majesty's Government for the protection of the civil population from air-raids, seven deep air-raid shelters, situated at Belsize Park, Camden Town, Goodge Street, Stockwell, Clapham North, Clapham Common and Clapham South respectively in the County of London and connected with the underground railway stations at those places (in this Act referred to collectively as "the deep tube shelters" and individually by the name of the place at which each shelter is situated), each consisting of a system of tunnels at a depth of sixty-five feet or more, together with other tunnels comprising staircases and other means of access from the underground railway platforms:

And whereas in connection with the deep tube shelters there were constructed as aforesaid certain other works, that is to say,—

- (a) works affording access to the deep tube shelters from the surface, consisting partly of structures erected on the surface (in this Act referred to collectively as "the surface structures") and partly of underground works (in this Act referred to collectively as "the underground access works"), namely, vertical shafts leading down to the shelters from the surface structures and, in the case of the Clapham North deep tube shelter, a subway

(in this Act referred to as "the Lendal Terrace subway") which runs down from one of the surface structures to a point under Lendal Terrace in the metropolitan borough of Wandsworth where it meets the head of a vertical shaft leading to the shelter, and

- (b) other works ancillary to the deep tube shelters (in this Act referred to collectively as "the ancillary works"), consisting of ventilation shafts leading from the shelters to the surface and of water tanks constructed on or near the surface:

And whereas the Minister of Works (in this Act referred to as "the Minister") has before the passing of this Act acquired by purchase certain lands which include the sites of some of the surface structures and ancillary works, together with parts of the deep tube shelters and of the underground access works where they lie under the surface of the lands so acquired:

And whereas it is expedient that so much of the deep tube shelters, and of the surface structures, underground access works and ancillary works, as is not already vested in the Minister should vest in him by the authority of Parliament:

And whereas in connection with the Bill for this Act there have been deposited with the London County Council plans (in this Act referred to as "the deposited plans") showing—

- (a) the lands affected by the provisions of this Act, other than lands of which only the subsoil is so affected;
- (b) the location of the subsoil (indicated on the deposited plans by the brown colouring of the corresponding surface areas) which comprises those parts of the deep tube shelters which are neither already vested in the Minister nor situated under the lands referred to in the preceding paragraph; and
- (c) the points (marked on the deposited plans with the letters "S" and "T") below which are situated the ends of the Lendal Terrace subway,

together with a book of reference to the deposited plans containing the names of the owners or reputed owners, lessees or reputed lessees, and occupiers, of the lands and subsoil referred to in paragraphs (a) and (b) of this recital:

Be it therefore enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) The following lands and works, that is to say,—

- (a) the lands delineated on the signed plans and thereon coloured pink (which comprise the surface structures and ancillary works, in so far as they were not vested

in the Minister immediately before the passing of this Act, together with land adjacent thereto and required for use in connection therewith and parts of the deep tube shelters and of the underground access works), and

- (b) those parts of the deep tube shelters and of the underground access works which were not vested in the Minister immediately before the passing of this Act and are not situated below the surface of the lands mentioned in the preceding paragraph,

shall by virtue of this subsection and without further assurance vest in the Minister for an estate in fee simple, freed and discharged from all other estates, interests, rights and charges which, immediately before the passing of this Act, subsisted in, over or on those lands and works or any of them:

Provided that this subsection shall have effect subject to the following provisions of this Act with respect to the British Transport Commission and the London Electricity Board.

(2) In this section "the signed plans" means the plans signed in triplicate by Sir Thomas Dugdale, Baronet, the Chairman of the Committee of the House of Commons to whom the Bill for this Act was committed, of which one copy has been deposited in the Private Bill Office of the House of Commons, another copy has been deposited in the Parliament Office in the House of Lords, and the third copy has been retained by the Minister.

2.—(1) In respect of the lands vested in the Minister by virtue of paragraph (a) of subsection (1) of the preceding section, the like compensation shall be payable by the Minister, and to the same persons, as would have been payable by him if he had acquired those lands compulsorily in the circumstances mentioned in the next following subsection; and the enactments relating to compensation in respect of the compulsory acquisition of land shall apply accordingly with the necessary modifications.

Compensation
for lands
vested in the
Minister.

(2) The said circumstances are those which would have existed if—

- (a) the preceding section, instead of vesting the said lands in the Minister, had conferred on him power (exercisable on his being authorized so to do in accordance with the provisions of the Acquisition of Land (Authorisation Procedure) Act, 1946) to purchase them compulsorily and that Act had accordingly applied as if references therein to the Minister of Transport and Civil Aviation and to the enactments specified in subsection (1) of section one thereof had included respectively references to the Minister and to the preceding section;

- (b) the Minister had been duly authorized to purchase those lands compulsorily and for that purpose had served the requisite notices to treat immediately after the passing of this Act; and
- (c) immediately after the service of the said notices the Minister had been in the position of having complied with all the requirements of the Lands Clauses Acts with which (in the circumstances specified in the preceding paragraphs) he would have had to comply to enable him to exercise full vesting powers over those lands, and he had thereupon duly exercised those powers.

(3) In paragraph (c) of the last preceding subsection references to the exercise by the Minister of full vesting powers over the said lands are references to his executing all such deeds poll, and doing all such other things, as in accordance with the Lands Clauses Acts would be requisite for vesting those lands in him for an estate in fee simple freed and discharged from all other estates, interests, rights and charges.

(4) All estates, interests, rights and charges which, immediately before the passing of this Act, were subsisting in, over or on any of the said lands, and from which, by virtue of the preceding section, the Minister acquires those lands freed and discharged, shall be affected in the same way, and with the like consequences, and persons entitled thereto shall have the like rights and obligations, as if the circumstances mentioned in subsection (2) of this section had actually existed.

Roads and
streets.

3.—(1) The following provisions shall have effect with respect to the private road which leads off Haverstock Hill in the metropolitan borough of Hampstead to the more northerly of the surface structures connected with the Belsize Park deep tube shelter, that is to say,—

- (a) any persons authorized by the Minister may pass (with or without vehicles) over that road for any purpose for which ingress to, or egress from, that shelter, or works connected therewith, may be required;
- (b) the Minister, if requested so to do by a person entitled to the fee simple of, or liable to repair, any part of that road, shall contribute such amount as may, in default of agreement, be determined by the Lands Tribunal to be just towards cost incurred by the person making the request in maintaining or repairing that part of the road at any time before that part becomes part of a highway repairable by the inhabitants at large.

(2) So much of any of the streets mentioned in the First Schedule to this Act as is comprised within the site of any of the surface structures or ancillary works shall cease to form part of a highway.

4.—(1) The drains and water-pipes described in the Second Schedule to this Act shall vest in the Minister by virtue of this subsection and without further assurance; and the Minister and persons authorized by him shall have all necessary rights of access to those drains and water-pipes for the purpose of maintaining, repairing and replacing them from time to time. Drains and water-pipes.

(2) In the case of the soil drain described in paragraph 4 of the Second Schedule to this Act, the Minister shall permit discharges to be made into the drain from any land through which the drain passes, subject to such reasonable requirements as he may impose, including (if he thinks fit) a requirement that the owner or occupier of the land from which the discharge is permitted shall contribute towards the expenses of maintaining, repairing and replacing the drain from time to time.

(3) If any person entitled to an interest in land traversed by any of the drains and water-pipes described in the Second Schedule to this Act proves that the value of his interest is depreciated by the coming into operation of subsection (1) of this section, the Minister shall pay him compensation equal to the amount of the depreciation.

(4) Any question with regard to—

- (a) a requirement of the Minister under subsection (2) of this section that a person shall make such a contribution as is mentioned in that subsection, or the amount of such a contribution, or
- (b) a person's entitlement to compensation under subsection (3) of this section, or the amount of any such compensation,

shall, in default of agreement, be determined by the Lands Tribunal.

(5) Any reference in this section or the said Second Schedule to a drain or to a water-pipe shall be construed as including a reference to any inspection chamber, ventilating shaft, meter or other accessory belonging to the drain or water-pipe.

5.—(1) If at any time land supported by works to which this section applies subsides by reason of the falling in of the works or of a failure to keep them in a watertight condition, the Minister shall be liable in damages to the like extent, and to the same persons, as if— Support of superjacent strata by underground works.

- (a) at the time when the subsidence occurs the works had been subject to an easement of support for the benefit of that land, of any buildings thereon immediately before that time and of any sewers, cables, mains, pipes or other apparatus therein immediately before that time, and

- (b) the subsidence had been due to the infringement of that easement by the Minister by withdrawing support from that land at that time.

(2) This section applies to the deep tube shelters, the underground access works, and so much of any of the ancillary works as is underground.

Restriction of building work above or near Lendal Terrace subway.

6.—(1) No person shall carry out any work which involves—

- (a) the erection of any building or structure on any of the lands in the metropolitan borough of Wandsworth numbered 25, 26 and 27 on the deposited plans, or

(b) any addition to a building or structure on those lands, unless he has served on the Minister a notice specifying the work which he intends to carry out and the Minister has consented in writing thereto.

(2) The Minister may, for the purpose of determining whether or not to give his consent to the carrying out of any such work, require the person by whom the notice was served to furnish him with plans and specifications and such other particulars (if any) as the Minister may think necessary.

(3) If at the end of the period of six months beginning with the date of the service of the notice the Minister has neither given nor refused his consent to the carrying out of the work to which the notice relates, he shall be deemed to have given his consent.

(4) If the Minister refuses his consent for the purposes of this section, any person having an interest in any land to which the notice related may, at any time before the end of the period of six months beginning with the date of the refusal, serve on the Minister a notice requiring the Minister to purchase his interest.

(5) If any person entitled to an interest in any of the lands specified in paragraph (a) of subsection (1) of this section claims that the value of his interest therein is depreciated by reason of the presence of the Lendal Terrace subway, or by reason of the coming into operation of the preceding provisions of this section, he may at any time before the end of the period of twelve months beginning with the date of the passing of this Act serve on the Minister a notice requiring the Minister to purchase his interest.

(6) Where a notice is served on the Minister under either of the two last preceding subsections requiring the Minister to purchase an interest in land, the Minister shall be deemed to be authorized to purchase that interest compulsorily in accordance with the Acquisition of Land (Authorisation Procedure) Act, 1946, and to have served notice to treat on the date on which the notice to purchase that interest was served on him, and that Act shall apply accordingly as if references therein to the Minister of

Transport and Civil Aviation and to the enactments specified in subsection (1) of section one thereof included respectively references to the Minister and to this section.

(7) The power conferred by subsection (2) of section five of the Acquisition of Land (Assessment of Compensation) Act, 1919, to withdraw a notice to treat shall not be exercisable in the case of a notice to treat which, by virtue of the last preceding subsection, is deemed to have been served by the Minister. ^{9 & 10 Geo. 5. c. 57.}

(8) The provisions of subsection (1) of this section shall be enforceable by civil proceedings by the Crown for an injunction or for any other appropriate relief.

(9) It shall be the duty of the clerk, or the person for the time being authorized to act as clerk, of the council of the metropolitan borough of Wandsworth to register the restriction imposed by subsection (1) of this section in the register of local land charges in like manner as if it were a restriction to which section fifteen of the Land Charges Act, 1925, applies by virtue of paragraph (b) of subsection (7) of that section. ^{15 & 16 Geo. 5. c. 22.}

7.—(1) The lands which vest in the Minister by virtue of paragraph (a) of subsection (1) of section one of this Act do not include any underground works which, immediately before the passing of this Act, were vested in the British Transport Commission and do not form part of the underground access works. ^{Provisions relating to British Transport Commission.}

(2) For the purposes of the application of this Act in relation to points of junction between any of the deep tube shelters and any underground works of the said Commission, the shelters shall be taken not to include any part of any such works which, immediately before the passing of this Act, was vested in the Commission.

(3) Nothing in this Act shall prejudice the operation of the following agreements relating to the deep tube shelters in so far as those agreements are still in force and capable of taking effect, that is to say:—

- (a) agreements dated respectively the eighteenth day of December, nineteen hundred and forty-two, and the twenty-fourth day of May, nineteen hundred and forty-three, between the London Passenger Transport Board and the Minister of Home Security on behalf of the Crown;
- (b) an agreement dated the twenty-eighth day of June, nineteen hundred and forty-six, between the London Passenger Transport Board of the one part and the Secretary of State for the Home Department and the Minister of Works on behalf of the Crown of the other part;

- (c) an agreement dated the fifteenth day of November, nineteen hundred and forty-nine, between the London Transport Executive on behalf of the British Transport Commission (as successors to the London Passenger Transport Board) and the Minister of Works on behalf of the Crown.

Provisions
relating to
London
Electricity
Board.

8.—(1) Wires, mains, transformers and other apparatus belonging to the London Electricity Board shall be excepted from the vesting provided for by section one of this Act.

(2) The Minister shall pay the amount of any expenses reasonably incurred by the said Board in executing works whereof the execution is reasonably undertaken for the purpose of removing into a highway any length of main belonging to them which is situate in land which, by virtue of this Act, ceases to form part of a highway or of laying in a highway a length of main in substitution for any length of main belonging to them which is situate as aforesaid.

(3) Any question with regard to the amount of any payment to be made under the last foregoing subsection by the Minister or whether the execution of any works was reasonably undertaken shall, in default of agreement, be determined by the arbitration of a single arbitrator to be appointed, in default of agreement, by the President of the Institution of Civil Engineers on the application of either the Minister or the said Board after notice in writing to the other.

Expenses and
receipts of
the Minister.

9. Any expenses incurred under or by virtue of this Act by the Minister and any expenses incurred by him in maintaining the deep tube shelters, the surface structures, the underground access works or the ancillary works shall be defrayed out of moneys provided by Parliament and any sums received by virtue of this Act by the Minister shall be paid into the Exchequer.

Short title.

10. This Act may be cited as the Underground Works (London) Act, 1956.

SCHEDULES

FIRST SCHEDULE

Section 3.

STREETS ENCROACHED UPON BY SURFACE WORKS CONNECTED WITH THE SHELTERS

1. In the metropolitan borough of Hampstead (Belsize Park deep tube shelter), Haverstock Hill and Downside Crescent.
2. In the metropolitan borough of St. Pancras (Camden Town deep tube shelter), Buck Street.
3. In the metropolitan borough of Holborn (Goodge Street deep tube shelter), Chenies Street and North Crescent.
4. In the metropolitan borough of Lambeth (Stockwell deep tube shelter), Studley Road and South Lambeth Road.
5. In the metropolitan borough of Wandsworth (Clapham Common deep tube shelter), Clapham High Street, Carpenter's Place and Clapham Park Road.

SECOND SCHEDULE

Section 4.

DRAINS AND WATER-PIPES CONNECTED WITH THE SHELTERS

1. In the metropolitan borough of Hampstead (Belsize Park deep tube shelter),—
 - (a) the six-inch soil drain running from land vested in the Minister by this Act at the point marked "A" on the deposited plans to the point marked "B" thereon and thence to the point marked "C" thereon where it joins the borough council's sewer;
 - (b) the surface-water drain running from land vested in the Minister by this Act at the point marked "D" on the deposited plans to the point marked "E" thereon, thence to the point marked "F" thereon and thence to the point marked "C" thereon where it joins the said sewer (being as to part thereof a six-inch pipe and as to the remainder thereof a conduit measuring approximately two feet six inches high and two feet broad); and
 - (c) the one-inch water-pipe running from the Metropolitan Water Board's pipe in Haverstock Hill at the point marked "G" on the deposited plans to the point marked "H" thereon, thence to the point marked "J" thereon, and thence to the point marked "K" thereon where it enters land vested in the Minister by this Act.
2. In the metropolitan borough of St. Pancras (Goodge Street deep tube shelter), the six-inch soil drain running from land vested in the Minister by this Act at the point marked "L" on the deposited plans to the point marked "M" thereon where it joins the borough council's sewer.

2ND SCH.
—cont.

3. In the metropolitan borough of Lambeth (Stockwell deep tube shelter), the one-inch water-pipe running from the Metropolitan Water Board's pipe in Clapham Road at the point marked "N" on the deposited plans to the point marked "O" thereon where it enters land vested in the Minister by this Act.

4. In the metropolitan borough of Wandsworth (Clapham North deep tube shelter), the part six-inch, part nine-inch, soil drain running from land vested in the Minister at the point marked "P" on the deposited plans to the point marked "Q" thereon and thence to the point marked "R" thereon where it joins the borough council's sewer.

5. In the metropolitan boroughs of Battersea and Wandsworth (Clapham South deep tube shelter),—

- (a) the six-inch soil drain running from land vested in the Minister by this Act at the point marked "U" on the deposited plans to the point in Nightingale Lane marked "V" thereon where it joins the sewer belonging to the councils of those boroughs; and
- (b) the one-inch water-pipe running from the Metropolitan Water Board's pipe at the point in Nightingale Lane marked "W" on the deposited plans to the point marked "X" thereon, thence to the point marked "Y" thereon, and thence to the point marked "Z" thereon where it enters land vested in the Minister by this Act.

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